

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Applications nos. 56899/16 and 21154/17
Akif NASIRLI and Yusup AHMADOV against Azerbaijan
and Zohrab TAMRAZOV and Taryel BAYRAMOV against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 9 December 2021 as a Committee composed of:

Lado Chanturia, *President,*
Lətif Hüseynov,
Arnfinn Bårdsen, *judges,*
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the declarations submitted by the respondent Government requesting the Court to strike the applications out of the list of cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the alleged breach of the right to freedom of association, namely the right to form an association, were communicated to the Azerbaijani Government ("the Government"). Complaints based on the same facts were also communicated under Article 6 of the Convention.

THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

The Government informed the Court that they proposed to make unilateral declarations with a view to resolving the issues raised by these complaints.

They further requested the Court to strike out the applications in accordance with Article 37 of the Convention.

The Government acknowledged that there had been a violation of the applicants' rights guaranteed by the provisions of the Convention relied on by the applicants. They offered to pay the applicants the amounts detailed in the appended table and invited the Court to strike the applications out of the list of cases in accordance with Article 37 § 1 (c) of the Convention. The amounts would be payable within three months from the date of notification of the Court's decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertook to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the cases.

The applicants were sent the terms of the Government's unilateral declarations several weeks before the date of this decision. The Court has not received any response from the applicants.

The Court observes that Article 37 § 1 (c) enables it to strike a case out of its list if:

> "... for any other reason established by the Court, it is no longer justified to continue the examination of the application."

Thus, it may strike out applications under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the cases to be continued (see, in particular, the *Tahsin Acar v. Turkey* judgment (preliminary objections) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI).

The Court has established clear and extensive case-law concerning complaints relating to the alleged breach of the right to freedom of association, namely the right to form an association (see, for example, *Jafarov and Others v. Azerbaijan*, no. 27309/14, 25 July 2019), and the alleged breach of the right to a reasoned decision (see, for example, *Mazahir Jafarov v. Azerbaijan*, no. 39331/09, 2 April 2020). Having regard to the fact that the applicants did not object to the terms of the unilateral declaration, the Court has no reason to consider that the compensation offered by the Government constitutes inadequate or otherwise unreasonable redress for the violation of their Convention rights (see *Igranov and Others v. Russia*, nos. 42399/13 and 8 others, §§ 22-24, 20 March 2018, and *Ryabkin and Volokitin v. Russia* (dec.), nos. 52166/08 and 8526/09, §§ 49-50, 28 June 2016, and, by contrast, *Romić and Others v. Croatia*, nos. 22238/13 and 6 others, §§ 77-87, 14 May 2020).

Noting the admissions contained in the Government's declarations as well as the amount of compensation proposed – which is consistent with the

amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the applications (Article 37 § 1 (c)).

In the light of the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the applications (Article 37 § 1 *in fine*).

Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declarations, the applications may be restored to the list in accordance with Article 37 § 2 of the Convention (see *Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Takes note of the terms of the respondent Government's declarations and of the arrangements for ensuring compliance with the undertakings referred to therein;

Decides to strike the applications out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 13 January 2022.

Viktoriya Maradudina	Lado Chanturia
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints Article 11 of the Convention (alleged breach of the right to freedom of association)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Amount awarded for non-pecuniary damage and costs and expenses per application (in euros)[1]
1.	56899/16 19/09/2016	**Akif Sovet oglu NASIRLI** 1969 **Yusup Seyid oglu AHMADOV** 1955	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	21/04/2021	4,750
2.	21154/17 07/03/2017	**Zohrab Gazanfar oglu TAMRAZOV** 1979 **Taryel Abbas oglu BAYRAMOV** 1984	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	21/04/2021	4,750

[1] Plus any tax that may be chargeable to the applicants